Nafees Ahmad vs State Of Nct Of Delhi & Anr on 24 July, 2025

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* IN THE HIGH COURT OF DELHI AT NEW DELHI

+ CRL.M.C. 1607/2025 & CRL. M.A. 7902/2025

NAFEES AHMAD
Through: Mr. La
Petiti

versus

STATE OF NCT OF DELHI & ANR. .....Respondents
Through: Mr. Sunil Kumar Gautam,
APP for the State with SI
Manita and PSI Diksha,
PS Mangolpuri.
Dr. H.L. Nimbar, Mr.
Pulkit Rana and Mr.
Rohan, Advs. for R-2 /
complainant.
R-2 (through VC)

CORAM:
HON'BLE MR. JUSTICE AMIT MAHAJAN
ORDER

% 24.07.2025

1. The present petition is filed seeking quashing of FIR No. 807/2019 dated 16.08.2019, registered at Police Station Mangolpuri, for offences under Sections 354/354A/354D/341/506/195-A of the Indian Penal Code, 1860 (IPC). Chargesheet has been filed in the present case.

2. The FIR was registered on a complaint filed by Respondent No. 2 alleging that when she went to Pushpanjali Market on 15.08.2019, the petitioner followed her and harassed her. It is alleged that the petitioner stopped his car front of This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 30/07/2025 at 21:38:50 Respondent No. 2's car and started taking her out of the car, tried to sit in her car, and tried to make her sit in his car by holding her hand.

3. It is alleged that the petitioner, at that time, was out on bail in another case registered against him by Respondent No. 2. She further alleged that the petitioner was also roaming around her house after drinking alcohol. She also alleged that the petitioner was continuously messaging and calling her. Hence, the present FIR.

4. The present petition is filed on the ground that the parties being neighbors, have settled their disputes by way of Settlement Agreement dated 24.02.2025, out of their free will, without any force, threat, intimidation or consideration from any party.

5. The petitioner is present in person in Court today and Respondent No. 2 has joined the proceedings through video conferencing. The parties have been duly identified by the Investigating Officer.

6. On being asked, Respondent No. 2 states that she does not wish to pursue any proceedings arising out of the present FIR and has no objection if the same are quashed.

7. Offences under Sections 341/506 of the IPC are compoundable whereas offences under Sections 354/354A/354D/195A of the IPC are non-compoundable.

8. It is well settled that the High Court while exercising its powers under Section 528 of the Bhartiya Nagarik Suraksha Sanhita, 2023 ('BNSS') (erstwhile Section 482 of the Code of Criminal Procedure, 1973) can compound offences which are non-compoundable on the ground that there is a compromise between the accused and the complainant. The Hon'ble Apex This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 30/07/2025 at 21:38:50 Court has laid down parameters and guidelines for High Court while accepting settlement and quashing the proceedings. In the case of Narinder Singh & Ors. v. State of Punjab & Anr. :

> (2014) 6 SCC 466, the Hon'ble Supreme Court had observed as under :-
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> "29. In view of the aforesaid discussion, we sum up and lay down the following principles by which the High Court would be guided in giving adequate treatment to the settlement between the parties and exercising its power under Section 482 of the Code while accepting the settlement and quashing the proceedings or refusing to accept the settlement with direction to continue with the criminal proceedings:
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> 29.1. Power conferred under Section 482 of the Code is to be distinguished from the power which lies in the Court to compound the offences under Section 320 of the Code. No doubt, under Section 482 of the Code, the High Court has inherent power to quash the criminal proceedings even in those cases which are not compoundable, where the parties have settled the matter between themselves. However, this power is to be exercised sparingly and with caution.
>
> 29.2. When the parties have reached the settlement and on that basis petition for quashing the criminal proceedings is filed, the guiding factor in such cases would be to secure:

(i) ends of justice, or

(ii) to prevent abuse of the process of any court.

While exercising the power the High Court is to form an opinion on either of the aforesaid two objectives.

29.3. Such a power is not to be exercised in those prosecutions which involve heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. Such offences are not private in nature and have a serious impact on society. Similarly, for the offences alleged to have been committed under special statute like the Prevention of Corruption Act or the offences committed by public servants while working in This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 30/07/2025 at 21:38:50 that capacity are not to be quashed merely on the basis of compromise between the victim and the offender.

29.4. On the other hand, those criminal cases having overwhelmingly and predominantly civil character, particularly those arising out of commercial transactions or arising out of matrimonial relationship or family disputes should be quashed when the parties have resolved their entire disputes among themselves.

29.5. While exercising its powers, the High Court is to examine as to whether the possibility of conviction is remote and bleak and continuation of criminal cases would put the accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal cases."

(emphasis supplied)

9. Similarly, in the case of Parbatbhai Aahir & Ors. v. State of Gujarat & Anr. : (2017) 9 SCC 641, the Hon'ble Supreme Court had observed as under :-

> "16. The broad principles which emerge from the precedents on the subject, may be summarised in the following propositions:
>
> 16.1. Section 482 preserves the inherent powers of the High Court to prevent an abuse of the process of any court or to secure the ends of justice. The provision does not confer new powers. It only recognises and preserves powers which inhere in the High Court.
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> 16.2. The invocation of the jurisdiction of the High Court to quash a first information report or a criminal proceeding on the ground that a settlement has been arrived at between the offender and the victim is not the same as the invocation of jurisdiction

for the purpose of compounding an offence. While compounding an offence, the power of the court is governed by the provisions of Section 320 of the Code of Criminal Procedure, 1973. The power to quash under Section 482 is attracted even if the offence is non-compoundable.

16.3. In forming an opinion whether a criminal This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 30/07/2025 at 21:38:50 proceeding or complaint should be quashed in exercise of its jurisdiction under Section 482, the High Court must evaluate whether the ends of justice would justify the exercise of the inherent power.

16.4. While the inherent power of the High Court has a wide ambit and plenitude it has to be exercised (i) to secure the ends of justice, or (ii) to prevent an abuse of the process of any court.

16.5. The decision as to whether a complaint or first information report should be quashed on the ground that the offender and victim have settled the dispute, revolves ultimately on the facts and circumstances of each case and no exhaustive elaboration of principles can be formulated.

16.6. In the exercise of the power under Section 482 and while dealing with a plea that the dispute has been settled, the High Court must have due regard to the nature and gravity of the offence. Heinous and serious offences involving mental depravity or offences such as murder, rape and dacoity cannot appropriately be quashed though the victim or the family of the victim have settled the dispute. Such offences are, truly speaking, not private in nature but have a serious impact upon society. The decision to continue with the trial in such cases is founded on the overriding element of public interest in punishing persons for serious offences.

16.7. As distinguished from serious offences, there may be criminal cases which have an overwhelming or predominant element of a civil dispute. They stand on a distinct footing insofar as the exercise of the inherent power to quash is concerned.

16.8. Criminal cases involving offences which arise from commercial, financial, mercantile, partnership or similar transactions with an essentially civil flavour may in appropriate situations fall for quashing where parties have settled the dispute.

16.9. In such a case, the High Court may quash the criminal proceeding if in view of the compromise between the disputants, the possibility of a conviction is remote and the continuation of a criminal proceeding would cause oppression and This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 30/07/2025 at 21:38:50 prejudice; and 16.10. There is yet an exception to the principle set out in propositions 16.8. and 16.9. above. Economic offences involving the financial and economic well-being of the State have

implications which lie beyond the domain of a mere dispute between private disputants. The High Court would be justified in declining to quash where the offender is involved in an activity akin to a financial or economic fraud or misdemeanour. The consequences of the act complained of upon the financial or economic system will weigh in the balance."

(emphasis supplied)

10. In the present case, Respondent No.2 has stated that she does not wish to pursue any proceedings arising out of the present FIR. In the peculiar circumstances of this case, it is unlikely that the present FIR will result in a conviction when Respondent No.2 does not wish to pursue the case.

11. Keeping in view the nature of dispute and the fact that the parties have amicably settled the dispute, this Court feels that no useful purpose would be served by keeping the dispute alive and continuance of the proceedings would amount to abuse of the process of Court. I am of the considered opinion that it is a fit case to exercise discretionary jurisdiction under Section 528 of the BNSS.

12. However, keeping in mind the fact that the charge sheet has already been filed in the case arising out of the present FIR, and the State machinery has been put to motion, ends of justice would be served if the petitioner is put to cost.

13. In view of the above, FIR No. 807/2019 and all consequential proceedings arising therefrom are quashed, subject to payment of cost of 50,000/- by the petitioner, to be deposited with the Delhi Police Welfare Society, within a period of four This is a digitally signed order.

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14. Proof of payment of cost shall be furnished to the concerned SHO.

15. The present petition is allowed in aforesaid terms. Pending application(s) also stand disposed of.

AMIT MAHAJAN, J JULY 24, 2025 'KDK' This is a digitally signed order.

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